

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

**COMPLAINANT’S MOTION TO FILE UNDER SEAL COMPLAINANT’S
REPLY TO RESPONDENT’S OPPOSITION BRIEF AND COMPLAINANT’S
RESPONSES TO RESPONDENT’S PROPOSED FINDINGS OF FACT**

Pursuant to Rule 5 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.5, and the Protective Order entered by the Presiding Officer in this case on May 8, 2025, see Dkt. 32 (the “Protective Order”), Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”), by and through its undersigned attorneys, respectfully moves for an order permitting Complainant to file under seal with the Presiding Officer unredacted copies of its Reply to Respondent’s Opposition Brief and Responses to Respondent’s Proposed Findings of Fact (together, the “Subject Filings”), filed contemporaneously herewith, and to file on the public docket of this case redacted copies of the Subject Filings. Complainant’s counsel conferred with Respondent’s counsel prior to the filing of this motion, and Respondent does not oppose this motion.

The Subject Filings contain information designated Confidential or Attorney’s Eyes Only by the parties, which information was previously the subject of two previous motions to seal, one

filed by Complainant (Dkt. No. 62 (May 22, 2026)) (the “Prior Sealing Motion”)¹, and one by Respondent (Dkt. No. 66 (Jun. 18, 2026)). For the same reasons discussed in the Prior Sealing Motion, Complainant seeks to file on the public docket of this case redacted copies of the Subject Filings. Good cause exists for the confidential treatment of the Confidential Materials and Complainant believes that the nature and content of each of the materials constituting the Confidential Materials are consistent with its respective confidentiality designation under the Protective Order. Consistent with the requirements of the Protective Order in this case and for good cause shown, Complainant seeks by the instant motion leave to file the Subject Filings under seal.

[SIGNATURE PAGE FOLLOWS]

¹ Unless otherwise specified, all defined terms herein take on the same meaning as in the Prior Sealing Motion.

Dated: July 2, 2026

Respectfully submitted,

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/s/ J. Zachery Morris

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Certificate of Service

I hereby certify that I have this day caused to be served the foregoing document upon Respondent BAL Container Line Co. by emailing a copy to their counsel of record listed below:

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Dated: July 2, 2026

/s/ J. Zachery Morris

J. Zachery Morris

*For Complainant 20230930-DK-Butterfly-1,
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